BOARD OF COUNTY COMMISSIONERS, PASCO COUNTY, FLORIDA
REGULAR MEETING/REZONINGS

ANNOTATED AGENDA
PREPARED IN THE OFFICE OF
JED PITTMAN, CLERK OF THE CIRCUIT COURT

NOVEMBER 27, 2007

WEST PASCO GOVERNMENT CENTER, BOARD ROOM
7530 LITTLE ROAD, NEW PORT RICHEY, FL 34654

County Commissioners	**Chairman Ann Hildebrand, District 3** **Vice-Chairman Ted J. Schrader, District 1** **Pat Mulieri, Ed.D., District 2** **Michael Cox, CFP®, District 4** **Jack Mariano, District 5**
County Administrator	**John J. Gallagher**
County Attorney	**Robert D. Sumner**
Clerk to the Board	**Jed Pittman – ABSENT. MS. LINDA DILLON, DEPUTY CLERK, PRESENT**

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CALL TO ORDER – 10:00 A.M.

INVOCATION }
PLEDGE OF ALLEGIANCE } MS. LINDA DILLON, DEPUTY CLERK
ROLL CALL }

BOARD REORGANIZATION

COMMISSIONER MULIERI MOVED TO NOMINATE COMMISSIONER SCHRADER AS CHAIRMAN; COMMISSIONER COX AND COMMISSIONER MARIANO SECONDED; MOTION CARRIED.

COMMISSIONER MULIERI MOVED TO NOMINATE COMMISSIONER MARIANO AS VICE CHAIRMAN; COMMISSIONER COX SECONDED; MOTION CARRIED.

CONSENT

AGENDA ITEMS C 16, C 20, C 44, AND C 53 WERE WITHDRAWN; AGENDA ITEM C 76 WAS PULLED BY COMMISSIONER COX FOR DISCUSSION.

COMMISSIONER MULIERI MOVED APPROVAL OF THE CONSENT AGENDA WITH EXCEPTION OF THE NOTED ITEMS; COMMISSIONER HILDEBRAND SECONDED; MOTION CARRIED.

COMMISSIONER COX MENTIONED THAT AGENDA ITEM C 1 AND C 8 DID NOT HAVE DOCUMENTS ATTACHED.

CONSTITUTIONAL OFFICERS - CLERK

C1 Statement of Revenues, Expenditures, and Changes-In Fund Balance-For Fiscal Year Ended September 30, 2007.
Memorandum CO08-116
Recommendation: Approve
Comm. Dist. All

MINUTES - APPROVAL

C2 Board of County Commissioners-Public Hearing/Budget-September 25, 2007
Memorandum CO08-111
Recommendation: Approve
Comm. Dist. All

C3 Board of County Commissioners-Regular Meeting/Rezonings-September 25, 2007
Memorandum CO08-112
Recommendation: Approve
Comm. Dist. All

MINUTES - DISTRIBUTION

C4 Board of County Commissioners-Special Meeting-September 5, 2007
Memorandum CO08-113
Recommendation: Receive and File
Comm. Dist. All

C5 Board Of County Commissioners-Regular Meeting/Rezonings-October 23, 2007
Memorandum CO08-114
Recommendation: Receive and File
Comm. Dist. All

C6 Board of County Commissioners-Special Meeting-November 2, 2007
Memorandum CO08-115
Recommendation: Receive and File
Comm. Dist. All

FINANCIAL MATTERS

C7 General Warrants, Payroll Registers, and Transfer Authorizations-Including Those Previously Approved by the Chairman/Vice-Chairman-Since the Last Regular Meeting of the Board of County Commissioners.
Memorandum CO08-108
Recommendation: Approve
Comm. Dist. All

PROPERTY APPRAISER

C8 Financial Reports-For Fiscal Year Ending-September 30, 2007
Memorandum CO08-117
Recommendation: Receive and File
Comm. Dist. All

SHERIFF

C9 Letter Dated October 15, 2007-Deposit of Check for $1,288.91-September Forfeited Monies.
Memorandum CO08-110
Recommendation: Receive and File
Comm. Dist. All

LEGISLATIVE/ADMINISTRATIVE

COUNTY ATTORNEY

C10 Traffic Enforcement Agreement-Longleaf Community Development District-Traffic Enforcement Services by Sheriff on Private Roads
Memorandum cao08-0407
Recommendation: Approve
Comm. Dist. 3

C11 Judgment as to Parcel 100, Allen Road, C4383.00-H & S Properties, Inc.Approval for Judgment as to Parcel 100
Memorandum CAO08-4506
Recommendation: Approve
Comm. Dist. 1

COUNTY ADMINISTRATION - TOURISM DEVELOPMENT

C12 Ad Agreement-Covey Communications Corp.-Promote Pasco County Memorandum TD0805
Recommendation: Approve
Comm. Dist. All

DEVELOPMENT SERVICES BRANCH

ENGINEERING SERVICES - ENGINEERING INSPECTIONS

C13 Release Performance Guarantee and Accept Streets and Stormwater System for County Maintenance-Cypress Creek Group, LLC, and Skinner Family, LP-Cypress Creek DRI, Phase 1
Memorandum enia08-003
Recommendation: Approve
Comm. Dist. 2

C14 Release Performance Guarantee, No Maintenance Guarantee, Private Streets and Drainage-Tampa Pub, Ltd.-Connerton Retail Center
Memorandum ENIA08-004
Recommendation: Approve
Comm. Dist. 2

C15 Release Partial Performance Guarantee, No Maintenance Guarantee, Private Streets and Drainage-Streetside Tampa, LLC, and Home Depot U.S.A., Inc.-Streetside at Little Ridge
Memorandum enia08-005
Recommendation: Approve
Comm. Dist. 4

ENGINEERING SERVICES - PROJECT MANAGEMENT

WITHDRAWN

C16 Task Order No. EDO07-09-Johnson Engineering, Inc.-Sea Forest Drive Sidewalk and Marine Parkway Sidewalk
Memorandum PMA08-009
Recommendation: Approve
Comm. Dist. 4,5

THE ITEM WAS WITHDRAWN BY THE COUNTY ADMINISTRATOR.

C17 Task Order No. EDO08-004-Florida Design Consultants, Inc.-Little Road Signals at Fox Hollow Drive, Ross Lane, and Seeley Lane
Memorandum pma08-036
Recommendation: Approve
Comm. Dist. 4,5

C18 Set Assessment-BCC-Paving of Regency Park
Memorandum pma08-042
Recommendation: Approve
Comm. Dist. 4

C19 Set Assessment-BCC-Setting the Assessment for the Paving in Lakes of Regency
Memorandum PMA08-043
Recommendation: Approve
Comm. Dist. 4

WITHDRAWN

C20 Gopher Tortoise Permit Incidental Take Permit-Florida Fish and Wildlife Conservation Commission-Moon Lake Road (C.R. 587) from Ridge Road to S.R. 52
Memorandum pma08-045
Recommendation: Approve
Comm. Dist. 4

THE ITEM WAS WITHDRAWN BY THE COUNTY ADMINISTRATOR.

ENGINEERING SERVICES - REAL ESTATE

C21 Resolution Canceling Taxes-Curtis A. and Georgia Martin-Moon Lake Road, Project No. C9528.00, Sections 08 and 09, Township 25 South, Range 17 East Memorandum REA08-023
Recommendation: Approve
Comm. Dist. 4

C22 Agreement for Sale and Purchase of Interest in Property-Riverside National Bank of Florida-Ridge Road Widening Project; Project No. C6686.30; Parcel No. 734; Section 29, Township 25 South, Range 17 East
Memorandum rea08-025
Recommendation: Approve
Comm. Dist. 4

C23 Recording of Warranty Deed-Vincent J. Monticciolo, D.D.S., P.L., a Florida Limited Liability Company-Development Review Condition No. DR07-2189, Grand Boulevard, Right-of-Way Conveyance
Memorandum rea08-026
Recommendation: Approve
Comm. Dist. 3

C24 Seller's Costs-Susan D. Lodato-Curley Road Project, Project No. C6442.05; Parcel No. 108; Section 03, Township 26 South, Range 20 East
Memorandum rea08-027
Recommendation: Approve
Comm. Dist. 1

C25 Resolution Canceling Taxes-Margie M. Byrom and Calvin Byrom-Clinton Avenue Project, Project No. C3216.30; Parcel No. 104; Section 09, Township 25 South, Range 21 East
Memorandum rea08-028
Recommendation: Approve
Comm. Dist. 1

C26 Recording of Perpetual Easement and Partial Release of Mortgage-R & R Commercial Leasing, Inc.-Development Condition, DR06-1510, U.S. 301, Right -of-Way Dedication
Memorandum REA08-031
Recommendation: Approve
Comm. Dist. 1

C27 Recording of Perpetual Easement for Mansfield Boulevard-Meadow Pointe Community Development District-Donation, Mansfield Boulevard at County Line Road, Intersection Improvements
Memorandum REA08-032
Recommendation: Approve
Comm. Dist. 2

C28 Agreement for Sale and Purchase of Interest in Property-Peggy Sue Zint-Moon Lake Road, Project No. C9528.00, Parcel No. 352, Section 29, Township 25 South, Range 17 East
Memorandum REA08-033
Recommendation: Approve
Comm. Dist. 4

C29 Recording of Two Perpetual Easements-Roscrea Holdings Corporation and Mary Galway, LLC-Development Review Condition DR07-626, U.S. 19, South of Little Road, Dedication of Right-of-Way
Memorandum rea08-034
Recommendation: Approve
Comm. Dist. 5

C30 Agreement for Sale and Purchase of Interest in Property-June R. Skaggs-Moon Lake Road, Project No. C9528.00, Parcel No. 237, Section 17, Township 25 South, Range 17 East
Memorandum rea08-035
Recommendation: Approve
Comm. Dist. 4

C31 Resolution Canceling Taxes-Ava Rossler as Trustee of the Robert Hedrick, Jr., Trust Agreement-Moon Lake Road, C9528.00
Memorandum REA08-036
Recommendation: Approve
Comm. Dist. 4

C32 Resolution Canceling Taxes-Mike Lenas-Moon Lake Road, Project No. C9528.00, Section 09, Township 25 South, Range 17 East
Memorandum REA08-037
Recommendation: Approve
Comm. Dist. 4

C33 Resolution Canceling Taxes-Steven L. Schatzer-Moon Lake Road, Project No. C9528.00, Section 21, Township 25 South, Range 17 East
Memorandum REA08-038
Recommendation: Approve
Comm. Dist. 4

C34 Agreement for Sale and Purchase of Interest in Property-Main-Douglas Limited Partnership and Gatornole Investment Group, LLC-Moon Lake Road, Project No. C9528.00, Parcel No. 379, Section 29, Township 25 South, Range 17 East
Memorandum REA08-039
Recommendation: Approve
Comm. Dist. 4

C35 Subordination of Interest in Real Property-Florida Department of Transportation -County Line Road (C.R. 578) Project; Parcel No. 104.03; Section 05, Township 24 South, Range 17 East
Memorandum rea08-040
Recommendation: Approve
Comm. Dist. 5

C36 Recording a Warranty Deed and Drainage Easement-District School Board of Pasco County-Conveying Photonics Drive and Photonics Drive Drainage Easement, Extention of Existing Photonics Drive to Little Road
Memorandum rea08-041
Recommendation: Approve
Comm. Dist. 3

C37 Recording of Warranty Deed-Bloomingdale Development, LLC, a Florida Corporation-Osprey Lane, Development Review Condition of Development, Section 25, Township 26 South, Range 18 East, Dedication of Right-of-Way Memorandum rea08-042
Recommendation: Approve
Comm. Dist. 2

C38 Agreement for Sale and Purchase of Interest in Property-Michael and Carol Jenks-Moon Lake Road, Project No. C9528.00, Parcel No. 262, Section 17, Township 25 South, Range 17 East
Memorandum REA08-044
Recommendation: Approve
Comm. Dist. 4

C39 Agreement for Sale of Interest in Property-Tony Loukmas-Moon Lake Road, Project No. C9528.00, Parcel No. 435, Section 09, Township 25 South, Range 17 East
Memorandum rea08-045
Recommendation: Approve
Comm. Dist. 4

ENGINEERING SERVICES – SURVEY

C40 Recording of Plat-Seven Springs Development Company, Inc.-Seven Springs Medical Park Platting with Construction Complete
Memorandum SA08-003
Recommendation: Approve
Comm. Dist. 3

C41 Recording of Plat-Timberwood, LLC; Mercedes Homes, Inc., Tampa Division; and GMAC Model Home Finance, LLC-Timberwood Acres Subdivision Replat with a Maintenance Guarantee
Memorandum sa08-004
Recommendation: Approve
Comm. Dist. 2

ENGINEERING SERVICES - TRAFFIC OPERATIONS

C42 Road Closure and Detour-Southern Site Works-Construct Intersection Drainage System, Embassy Boulevard at Regency Park Boulevard
Memorandum tr08-0247
Recommendation: Approve
Comm. Dist. 4

GROWTH MANAGEMENT

C43 2008 Non-Deminimis Roadway List-BCC-Adoption of 2008 Non-Deminimis Roadway List/NPR/Compliance with SB 360
Memorandum GM08-079
Recommendation: Approve
Comm. Dist. All

WITHDRAWN

C44 Amendment Two to Task Order No. 2 for General Consulting Services-Marina Pennington-Pasco Town Center Development of Regional Impact Memorandum GM08-88
Recommendation: Approve
Comm. Dist. 1

THE ITEM WAS WITHDRAWN BY THE COUNTY ADMINISTRATOR.

ZONING/CODE COMPLIANCE

C45 Lien Resolutions-Several Property Owners-Property Maintenance Ordinance (Section 42-1)
Memorandum CC08-021
Recommendation: Approve
Comm. Dist. All

C46 Lien Resolutions-Several Property Owners-Property Maintenance Ordinance (Section 42-1)
Memorandum CC08-023
Recommendation: Approve
Comm. Dist. All

C47 Lien Resolutions-Several Property Owners-Property Maintenance Ordinance (Section 42-1)
Memorandum cc08-028
Recommendation: Approve
Comm. Dist. All

P**UBLIC SERVICES BRANCH**

COMMUNITY SERVICES - ELDERLY NUTRITION

C48 Amendment No. 003 to Contract No. EA007-PASCO-NUTRITION-Area Agency on Aging of Pasco-Pinellas, Inc.-Increase of the Contract by $10,000.00 Memorandum ENP08-002
Recommendation: Approve
Comm. Dist. All

EMERGENCY SERVICES

C49 2007-08 EMS County Awards Grant Application-Florida Department of Health, Bureau of Emergency Medical Services-To Apply for the Annual Awards Grant Memorandum es08-1023
Recommendation: Approve
Comm. Dist. All

FACILITIES MANAGEMENT

C50 Change Order No. 12-J. Kokolakis Contracting, Inc.-West Pasco Judicial Center Renovation and Expansion
Memorandum FAC08-022
Recommendation: Approve
Comm. Dist. 4

C51 Change Order No. 6-Bandes Construction Company, Inc.-Renovation and Addition to the Land O' Lakes and Regency Park Libraries
Memorandum FAC08-027
Recommendation: Approve
Comm. Dist. 2,4

PARKS AND RECREATION

C52 Donation-Jarrett Ford Lincoln Mercury-Parks and Recreation Department, Stanley Park.
Memorandum pra08-0043
Recommendation: Approve
Comm. Dist. 1

UTILITIES SERVICES BRANCH

UTILITIES CONSTRUCTION AND CONTRACT MANAGEMENT

WITHDRAWN

C53 Task Order No. 2-08-QORE Property Sciences, Inc. (QORE)-Solid Waste Landfill Facilities - Monitor Well Installations (PCU05-024.01)
Memorandum UTD08-088
Recommendation: Approve
Comm. Dist. 1, 2

THE ITEM WAS WITHDRAWN BY THE COUNTY ADMINISTRATOR.

C54 Release of Maintenance Guarantee-M/I Homes of Tampa, LLC-Asbel Estates, Phase 3 (PCU03-234.03)
Memorandum UTD08-145
Recommendation: Approve
Comm. Dist. 2

C55 Release of Maintenance Guarantee-M/I Homes of Tampa, LLC-Asbel Estates, Phase 2 (PCU03-234.02)
Memorandum UTD08-146
Recommendation: Approve
Comm. Dist. 2

C56 Release of Maintenance Guarantee-M/I Homes of Tampa, LLC-Asbel Estates, Phase 1 (PCU03-234.01)
Memorandum UTD08-147
Recommendation: Approve
Comm. Dist. 2

C57 Release of Maintenance Guarantee-U.S. Home Corporation-Heritage Springs, Village 23, Unit 2, (PCU96-103.24)
Memorandum UTD08-148
Recommendation: Approve
Comm. Dist. 3

C58 Release of Maintenance Guarantee-U.S. Home Corporation-Heritage Springs, Villages 24 and 24A (PCU96-103.25)
Memorandum UTD08-149
Recommendation: Approve
Comm. Dist. 3

C59 Release of Maintenance Guarantee-U.S. Home Corporation-Heritage Pines, Village 31 (PCU97-133.22)
Memorandum UTD08-150
Recommendation: Approve
Comm. Dist. 5

C60 Release of Maintenance Guarantee-U.S. Home Corporation-Heritage Pines, Village 10, Units 1, 2, and 3 (PCU97-133.23)
Memorandum UTD08-151
Recommendation: Approve
Comm. Dist. 5

C61 Release of Maintenance Guarantee-U.S. Home Corporation-Heritage Pines, Village 30 (PCU97-133.30)
Memorandum UTD08-152
Recommendation: Approve
Comm. Dist. 5

C62 Release of Maintenance Guarantee-U.S. Home Corporation-Heritage Pines, Village 12 (PCU97-133.28)
Memorandum UTD08-153
Recommendation: Approve
Comm. Dist. 5

C63 Release of Maintenance Guarantee-U.S. Home Corporation-Heritage Pines, Village 13 (PCU97-133.27)
Memorandum UTD08-154
Recommendation: Approve
Comm. Dist. 5

C64 Release of Maintenance Guarantee-U.S. Home Corporation-Heritage Pines, Village 29 (PCU97-133.26)
Memorandum UTD08-155
Recommendation: Approve
Comm. Dist. 5

C65 Release of Maintenance Guarantee-U.S. Home Corporation-Heritage Pines, Village 11 (PCU97-133.25)
Memorandum UTD08-157
Recommendation: Approve
Comm. Dist. 5

C66 Release of Maintenance Guarantee-Maconi-Crosland Oak Creek, LLC-Oak Creek, Phase 1 (PCU99-107.01)
Memorandum UTD08-178
Recommendation: Approve
Comm. Dist. 1

C67 Acceptance of Utility Improvements and Maintenance Guarantee-Lennar Communities-Concord Station, Sunlake Boulevard North (PCU00-318.05) Memorandum UTD08-186
Recommendation: Approve
Comm. Dist. 2

C68 Acceptance of Utility Improvements and Maintenance Guarantee-Lago Development, Inc.-Lago Del Rey (PCU05-295.00)
Memorandum UTD08-187
Recommendation: Approve
Comm. Dist. 2

C69 Acceptance of Utility Improvements and Maintenance Guarantee-Bruntia Management, LLC-Creative World Day Care at Ballantrae (PCU02-114.15) Memorandum UTD08-188
Recommendation: Approve
Comm. Dist. 2

C70 Acceptance of Utility Improvements and Maintenance Guarantee-Regent USA Properties, Inc.-Dove Oaks (PCU98-122.02)
Memorandum UTD08-189
Recommendation: Approve
Comm. Dist. 2

C71 Utilities Service Agreement-Cypress Lakes Holdings, LLC-Florida Gas and Electric Complex (PCU07-136.00.A.2.1)
Memorandum UTD08-211
Recommendation: Approve
Comm. Dist. 1

C72 Task Order No. 1-08-Parsons Water & Infrastructure, Inc.-East/West Reclaimed Transmission Main, Phase II (PCU06-095.00)
Memorandum UTD08-217
Recommendation: Approve
Comm. Dist. 2

UTILITIES FISCAL SERVICES/SPECIAL PROJECTS

C73 Utilities Services Agreement for Emergency Water-Virginia City Utility-Provide Emergency Water Supply
Memorandum utfssp08-055
Recommendation: Approve
Comm. Dist. 3

C74 Emergency Water Agreement-Holiday Utility Company-Emergency Water Supply
Memorandum utfssp08-056
Recommendation: Approve
Comm. Dist. 3

C75 Agreement to Provide Meter Reading Service-Hudson Water Works, Inc.Provide Meter Reading Services to Pasco County Utilities in Viva Villas
Memorandum utfssp08-059
Recommendation: Approve
Comm. Dist. 5

PULLED

C76 Change Order-Gulf Coast Tractor and Equipment, LLC-Hydraulic Excavators, Change Order Bid No. PU07-168K
Memorandum UTFSSP08-068
Recommendation: Approve
Comm. Dist. All

THE ITEM WAS PULLED BY COMMISSIONER COX.

COMMISSIONER COX MOVED APPROVAL OF STAFF'S RECOMMENDATION; COMMISSIONER MARIANO SECONDED; MOTION CARRIED.

OFFICE OF MANAGEMENT AND BUDGET

BUDGETING

C77 Transfer Within the Pasco Water and Sewer Fund/Reserves- B401-to Appropriate Sufficient Funds for Tampa Bay Water True-up Agreement$160,000.00
Memorandum BA07-279
Recommendation: Approve
Comm. Dist. All

C78 Transfer Within the Municipal Service Fund-Reserves to Appropriate Funds to Emergency Services Administration for Rugged Laptop Computers-$15,000.00
Memorandum BA07-280
Recommendation: Approve
Comm. Dist. All

C79 Transfer Within the General Fund-Sheriff - Law Enforcement Realign Funds Request Due to Increased Inmate Medical Costs-$509,101.00
Memorandum BA07-281
Recommendation: Approve
Comm. Dist. All

C80 Transfer Within the B504 Fund-County Insurance Fund/Risk Management-Self Insurance to Appropriate Funds for the Remainder of FY07-$2,000.00 Memorandum BA07-282
Recommendation: Approve
Comm. Dist. All

C81 Transfer with Pasco Water and Sewer Fund-Capital Improvements to Appropriate Funds to Purchase an Auto Analyzer-$50,000.00
Memorandum BA08-040
Recommendation: Approve
Comm. Dist. All

C82 Transfer Within the General Fund/Reserve-To Carry Forward Prior Year Encumbrances for IT Projects and Capital Web Portal Project-$325,588.00 Memorandum BA08-043
Recommendation: Approve
Comm. Dist. All

C83 Resolution Increasing Revenues Within the Transportation Services Fund-Provide Operating Assistance for Rural Transportation-$89,500.00 Memorandum BA08-044
Recommendation: Approve
Comm. Dist. All

C84 Resolution Recognizing Funding from Florida Department of Transportation-Public Transportation Operating Assistance-$741,741.00
Memorandum BA08-045
Recommendation: Approve
Comm. Dist. All

C85 Resolution Increasing Revenues-Within the Department of Transportation$577,002.00
Memorandum BA08-046
Recommendation: Approve
Comm. Dist. All

C86 Resolution Decreasing Revenues -Within the Department Community Affairs Grant Fund-($8,029.00)
Memorandum BA08-047
Recommendation: Approve
Comm. Dist. All

C87 Resolution Decreasing Revenues-Library Impact Fee Fund-($72,424.00) Memorandum BA08-048
Recommendation: Approve
Comm. Dist. All

C88 Resolution Increasing Revenues-Within the General Fund for Refund of Prior Year Expenditures-$5,000.00
Memorandum BA08-049
Recommendation: Approve
Comm. Dist. All

C89 Resolution Decreasing Revenues-Capital Improvement Fund-($46,699.00)
Memorandum BA08-050
Recommendation: Approve
Comm. Dist. All

C90 Realign Funds for Guardian Ad-Litem Technology Costs-General Funds/Court Technology-Administration-$18,254.00
Memorandum BA08-051
Recommendation: Approve
Comm. Dist. All

C91 Realign Funds-General Fund/Guardian Ad-Litem to General Fund Reserves$18,164.01
Memorandum BA08-052
Recommendation: Approve
Comm. Dist. All

COMMUNITY DEVELOPMENT

C92 Challenge Agreement - Grant No. QFZ82-Florida Department of Children and Families - Office of Homelessness-Subgrant Agreements with Not-For-Profit Agencies to Provide Homeless Services Countywide
Memorandum CD08-009
Recommendation: Approve
Comm. Dist. All

C93 Addendum No. 4 to Subrecipient Agreement - HOME Investment Partnership (HOME Program and State Housing Initiative Partnership (SHIP) Program Largo Area Housing Development Corporation -Increase Funds to Agreement Memorandum CD08-033
Recommendation: Approve
Comm. Dist. All

PURCHASING

C94 Award of Contract for Professional Architectural Services--RFQ No. 06-175A (Community Development Division)-Design Styles, Inc.-To Provide Ongoing Professional Architectural Services for the Community Development Division's Homeowner Construction and Rehabilitation Program
Memorandum PU08-048
Recommendation: Approve
Comm. Dist. All

C95 Purchase of Additional Software Licenses, Support Services, and Training for Service Desk Solution (Information Technology)-Anton Systems, Inc.-Expand Service Desk Solution, Which Helps the County Effectively Manage its Technology Services and Assets
Memorandum PU08-050
Recommendation: Approve
Comm. Dist. All

C96 Request to Increase Blanket Purchase Order for Propane Gas (Facilities Management)-Amerigas-Purchase of Propane Gas for Use at Locations Throughout the County
Memorandum PU08-055
Recommendation: Approve
Comm. Dist. All

C97 Establish Annual Award for Automotive-Type Batteries--Bid No. 07-205F (Fleet Management Department)-ANCO-Superior, Inc., and Batteries by Fisher, Inc.Batteries for Automobiles, Trucks, and Highway Equipment Throughout the County
Memorandum PU08-056
Recommendation: Approve
Comm. Dist. All

C98 Classification and Disposal of Surplus Electronic Equipment-Creative Recycling Systems, Inc. (CRS)-Request to Classify and Dispose of Surplus Electronic Equipment by Demanufacturing and Recycling
Memorandum PU08-058
Recommendation: Approve
Comm. Dist. All

C99 Classification and Disposal of Surplus Property-Tampa Machinery, Inc.-Disposal of Surplus County Property Through Public Auction
Memorandum PU08-059
Recommendation: Approve
Comm. Dist. All

C100 Establish Annual Award for Traffic Loop and Sensor Installation--Bid No. 07206D (Traffic Operations Division)-ATCCB, Inc.-Purchase of Equipment and Services Necessary to Install Inductive Loops, Sensors, Pull Boxes, and Conduit for Various Traffic Signal Projects Throughout the County
Memorandum PU08-060
Recommendation: Approve
Comm. Dist. All

C101 Award of Bid for Lake Conley Water Quality Improvements--Bid No. 07-196 (Engineering Services)-Core Engineering & Construction, Inc.-Installation of Equipment within the Existing Storm Sewer System Serving the Aloha Gardens Development to Improve the Quality of Water Discharged into Lake Conley
Memorandum PU08-061
Recommendation: Approve
Comm. Dist. 3

C102 Award of Bid for Intersection Improvements, Bid No. 07-182 (Engineering Services)-Clark Hunt Construction, Inc.-Roadway Improvements at the Intersection of Grand Boulevard and Mile Stretch Drive in Holiday
Memorandum PU08-064
Recommendation: Approve
Comm. Dist. 3

C103 Construction of Improvements at Lake Lisa Park--Bid No. 07-186 (Parks and Recreation Department)-Southwest Contracting, Inc.-Construction of Approximately 2,800 Linear Feet of Walkway, Site Work, Landscaping, and Construction of Handball and Basketball Courts
Memorandum PU08-066
Recommendation: Approve
Comm. Dist. 4

OFFICE OF MANAGEMENT AND BUDGET

C104 Return of Interest Earnings to the Supervisor of Elections-$33,565.23-Returned in Accordance with Memo from Florida Department of State
Memorandum OMB08-8040
Recommendation: Approve
Comm. Dist. All

C105 Addendum to Interlocal Agreement-Between Pasco County and the Public Defender-Mentally Ill Jail Diversion Program
Memorandum OMB08-8049
Recommendation: Approve
Comm. Dist. All

REGULAR

CONSTITUTIONAL OFFICERS

CLERK

R1 Minutes-Financial Matters-Specific Approvals
Memorandum CO08-109
Recommendation: Approve
Comm. Dist. All

COMMISSIONER HILDEBRAND MOVED APPROVAL; COMMISSIONER MULIERI SECONDED; MOTION CARRIED.

COMMITTEE REPORTS AND MISCELLANEOUS OLD BUSINESS

DISTRICT ONE – CHAIRMAN SCHRADER

CHAIRMAN SCHRADER INFORMED THE BOARD THAT THE CERTIFICATE OF OCCUPANCY WOULD BE ISSUED TO FIRE STATION 36 IN BLANTON WITHIN THE NEXT FEW WEEKS. HE SUGGESTED A RIBBON CUTTING CEREMONY BE SCHEDULED ON SATURDAY, JANUARY 19TH AT 11:00 A.M., IN ORDER FOR THE COMMUNITY TO PARTICIPATE. HE DIRECTED MR. GALLAGHER TO SEND OUT A NOTICE REGARDING THE RIBBON CUTTING CEREMONY AND OPEN HOUSE.

COMMISSIONER HILDEBRAND MOVED TO DIRECT MR. GALLAGHER TO SEND OUT NOTICES TO THE BLANTON COMMUNITY REGARDING THE OPEN HOUSE FOR FIRE STATION 36; COMMISSIONER MULIERI SECONDED; MOTION CARRIED.

CHAIRMAN SCHRADER INFORMED THE BOARD THAT HE HAD HELD DISCUSSIONS WITH MR. JEFF STEINSNYDER REGARDING THE COUNTY ATTORNEY CONTRACT AND THE DATE HE WOULD BEGIN HIS EMPLOYMENT WITH THE COUNTY.

COMMISSIONER HILDEBRAND MOVED TO EXTEND MR. SUMNER'S CONTRACT TO JANUARY 21, 2008; COMMISSIONER MULIERI SECONDED.

COMMISSIONER HILDEBRAND AMENDED HER MOTION TO EXTEND MR. SUMNER'S CONTRACT TO JANUARY 18, 2008; COMMISSIONER COX SECONDED; MOTION CARRIED.

CHAIRMAN SCHRADER LISTED HIS APPOINTMENTS TO THE FOLLOWING COMMITTEES:

ALCOHOL & DRUG ABUSE GRANT SELECTION: CHAIRMAN SCHRADER
CANVASSING BOARD: COMMISSIONER MULIERI AND COMMISSIONER COX
CIRCUIT CONFLICT COMMITTEE, 6TH JUDICIAL CIRCUIT: COMMISSIONER HILDEBRAND
DEPENDENCY DRUG TREATMENT COURT PLANNING STEERING COMMITTEE: COMMISSIONER MARIANO
ECONOMIC DEVELOPMENT COUNCIL: COMMISSIONER COX
ENGINEERING/ARCHITECTURAL SELECTION COMMITTEE: CHAIRMAN SCHRADER
GOVERNMENT OPERATIONS COMMITTEE: ALL COMMISSIONERS
INSURANCE SELECTION COMMITTEE: COMMISSIONER COX
JOBS & EDUCATIONAL PARTNERSHIP BOARD: COMMISSIONER MULIERI
PUBLIC SAFETY COORDINATING COUNCIL: COMMISSIONER HILDEBRAND
PASCO COUNTY FAIR AUTHORITY: CHAIRMAN SCHRADER
TAMPA BAY AREA REGIONAL TRANSPORTATION AUTHORITY: COMMISSIONER HILDEBRAND
TAMPA BAY PARTNERSHIP: CHAIRMAN SCHRADER
TAMPA BAY REGIONAL COUNCIL: COMMISSIONER MARIANO
TAMPA BAY WATER: COMMISSIONER HILDEBRAND AND CHAIRMAN SCHRADER
T.B.R.P.C. AREA AGENCY ON AGING: COMMISSIONER MULIERI
TOURIST DEVELOPMENT COUNCIL: COMMISSIONER MARIANO
TRANSPORTATION DISADVANTAGED LOCAL COORDINATING BOARD: COMMISSIONER MULIERI
UNDERWRITER SELECTION COMMITTEE: COMMISSIONER COX
U.S. 19 TASK FORCE: COMMISSIONER HILDEBRAND AND COMMISSIONER MARIANO
VALUE ADJUSTMENT BOARD: COMMISSIONER HILDEBRAND, COMMISSIONER COX, AND CHAIRMAN SCHRADER

COMMISSIONER COX MOVED APPROVAL OF THE APPOINTMENTS; COMMISSIONER MULIERI SECONDED; MOTION CARRIED.

CHAIRMAN SCHRADER NOTED THE FINAL VALUE ADJUSTMENT BOARD MEETING HAD BEEN CHANGED FROM DECEMBER 13TH TO DECEMBER 19TH AT 10:00 A.M., BUT ANOTHER MEETING WAS SCHEDULED IN THE BOARD ROOM FOR THAT SAME TIME. HE REQUESTED THE TIME BE CHANGED FROM 10:00 A.M. TO 1:30 P.M.

CHAIRMAN SCHRADER DISCUSSED THE VALUE ADJUSTMENT PROCESS REGARDING RECEIVING THE APPEALS IN WRITING. MR. SUMNER INFORMED THE BOARD THERE WERE TAXPAYERS THAT WERE PLANNING ON FILING AN APPEAL AGAINST THE VALUE ADJUSTMENT BOARD AND THE PROPERTY APPRAISER WOULD BE CONTESTING AT LEAST THREE DECISIONS OF THE SPECIAL MAGISTRATE. HE EXPLAINED FURTHER AND DISCUSSION FOLLOWED. CHAIRMAN SCHRADER REQUESTED THE DOCUMENTATION BE GIVEN TO THE VAB MEMBERS ON OR BEFORE THE FRIDAY PRIOR TO THE VAB MEETING.

COMMISSIONER COX ASKED IF THE VAB MEMBERS WERE ALLOWED TO SPEAK TO THE TAXPAYERS REGARDING THEIR VAB PETITION. THE BOARD AGREED THE VALUE ADJUSTMENT BOARD WOULD NEED TO ESTABLISH A POLICY THAT THE MEMBERS WOULD NOT MEET WITH THE TAXPAYERS OR THE PROPERTY APPRAISER TO DISCUSS THE APPEALS.

DISTRICT TWO – COMMISSIONER MULIERI

COMMISSIONER MULIERI SAID SHE HAD TALKED TO MR. BIPIN PARIKH REGARDING NO ENTRIES ON CARSON DRIVE. SHE EXPLAINED THE ISSUES REGARDING THE DEVELOPMENT, THE HOUSE THAT WAS REMOVED, AND THE SWIMMING POOL. SHE REQUESTED STAFF CLOSE OFF THE ENTRANCE TO CARSON DRIVE FROM THE DEVELOPMENT.

COMMISSIONER MULIERI STATED SHE HAD RECEIVED COMPLAINTS REGARDING ODOR COMING FROM A HOUSE IN BENT TREE. THE ISSUE WAS DISCUSSED AND THE POSSIBLE STEPS THAT SHOULD BE TAKEN.

DISTRICT THREE – COMMISSIONER HILDEBRAND

COMMISSIONER HILDEBRAND MOVED TO APPOINT MS. KIM SCHUKNECT TO THE HEALTH COUNCIL BOARD; COMMISSIONER MULIERI AND COMMISSIONER COX SECONDED; MOTION CARRIED.

COMMISSIONER HILDEBRAND MOVED TO WAIVE THE TENT FEES IN THE AMOUNT OF $192.00 FOR THE ST. GEORGE GREEK ORTHODOX CHURCH FESTIVAL WHICH WOULD BE HELD ON FEBRUARY 22ND THROUGH THE 24TH; COMMISSIONER MULIERI SECONDED; MOTION CARRIED.

DISTRICT FOUR – COMMISSIONER COX

COMMISSIONER COX MOVED APPROVAL OF A ONE-TIME FIX IN THE AMOUNT OF $5,700.00 FOR NAPER STREET IN THE MOON LAKE AREA; COMMISSIONER MARIANO SECONDED; MOTION CARRIED.

COMMISSIONER COX BROUGHT UP FOR DISCUSSION THE NEXT BUDGET CYCLE AND DIFFERENT WAYS THE COUNTY COULD SAVE MONEY. HE SUGGESTED A COST SAVINGS AWARDS PROGRAM WHERE INCENTIVES WOULD BE GIVEN TO EMPLOYEES WHO SUGGESTED WAYS TO SAVE MONEY. DISCUSSION BY THE BOARD FOLLOWED. DIRECTION WAS GIVEN TO STAFF TO RESEARCH THE ITEM AND TO BRING BACK A REPORT BACK BEFORE THE BOARD IN JANUARY.

COMMISSIONER COX MENTIONED THAT THE PERIOD FOR SUBMITTING APPLICATIONS FOR THE COMMISSIONER'S SECRETARY HAD ENDED. THE BOARD DISCUSSED THE INTERVIEWING PROCESS AND AGREED THAT ALL THE COMMISSIONERS WOULD REVIEW THE APPLICATIONS, EACH WOULD BRING A SHORT-LIST OF THREE APPLICANTS TO NEXT TUESDAY'S BOARD MEETING, AND THE INTERVIEWS WOULD BE CONDUCTED ON DECEMBER 6TH AT 3:00 P.M. IN THE COMMISSION CONFERENCE ROOM.

COMMISSIONER COX INFORMED THE BOARD EACH MONTH THE HOLIDAY ROTARY CLUB NOMINATED AN EMPLOYEE OF PASCO COUNTY AS "EMPLOYEE OF THE MONTH". HE STATED MR. GERALD LANKIN, WHO HELPED RESCUE PEOPLE THAT HAD DRIVEN OFF A ROAD INTO A RAVINE, WAS NOMINATED AS THIS MONTH'S EMPLOYEE OF THE MONTH AND WAS RECOGNIZED AT THE ROTARY LUNCHEON.

DISTRICT FIVE – COMMISSIONER MARIANO

COMMISSIONER MARIANO SPOKE ABOUT THE LETTER THAT WAS SENT BY SENATOR FASANO TO THE PUBLIC SERVICE COMMISSION REGARDING CLEAN WATER.

COUNTY ADMINISTRATOR

MR. GALLAGHER ASKED MR. SAM STEFFEY TO SPEAK BEFORE THE BOARD REGARDING A BOARD MEETING TO DISCUSS THE COMP PLAN AMENDMENTS.

MR. STEFFEY EXPLAINED STAFF WAS WORKING ON THE 07-2 COMP PLAN AMENDMENTS AND WAS ALSO WORKING ON A RESPONSE TO THE REPORT THAT WAS RECEIVED FROM THE DCA IN NOVEMBER. HE EXPLAINED FURTHER. IT WAS NOTED THAT THE SPECIAL BOARD MEETING SCHEDULED FOR DECEMBER 11TH WAS CANCELLED AND A SPECIAL BOARD MEETING WILL BE SCHEDULED FOR JANUARY 16, 2008, 1:30 P.M., NEW PORT RICHEY.

LATER IN THE MEETING, MR. STEFFEY ASKED THE BOARD TO RECONSIDER THE ITEM.

COMMISSIONER HILDEBRAND MOVED TO RECONSIDER THE ACTION TO SCHEDULE A SPECIAL BOARD MEETING ON JANUARY 16, 2008; COMMISSIONER MULIERI AND COMMISSIONER COX SECONDED; MOTION CARRIED.

MR. STEFFEY STATED THERE WOULD NOT BE A NEED FOR A SPECIAL BOARD MEETING BECAUSE THE ITEM WOULD BE DISCUSSED AT THE REGULAR BOARD MEETING ON JANUARY 8, 2008.

COUNTY ATTORNEY

NO ITEMS.

CLERK TO THE BOARD

NO ITEMS.

MISCELLANEOUS OLD BUSINESS

R2 Water-Issues-
Memorandum BCCA08-103
Recommendation: Not Applicable
Comm. Dist. All

WATER ISSUES DISCUSSED WERE: YESTERDAY THERE WAS A JOINT MEETING WITH SWFWMD AND TAMPA BAY WATER WHICH WAS VERY PRODUCTIVE; THE DESAL PLANT WAS OPERATING AND PEAKED AT 29 MDG ON ONE DAY; IN ATLANTA THERE WERE SIGNS POSTED REGARDING WATER RESTRICTIONS AND THE BAY AREA MAY WANT TO LOOK INTO THAT AS WELL; THE DROUGHT IN NEIGHBORING STATES; AND WATER RESTRICTIONS.

COUNTY ADMINISTRATOR

R3 Letter from Pasco Economic Development Council-Dated November 9, 2007RE: Ratification of Business Incentive Committee Members. Memorandum CA08A-100
Recommendation: Approve
Comm. Dist. All

COMMISSIONER COX MOVED APPROVAL OF STAFF'S RECOMMENDATION; COMMISSIONER HILDEBRAND AND COMMISSIONER MULIERI SECONDED; MOTION CARRIED.

LEGISLATIVE/ADMINISTRATIVE COUNTY -ATTORNEY

R4 Project Resolution-Project No. C3330.27-S.R. 54 from West of S.R. 581 to East of C.R. 577
Memorandum cao 08-1618
Recommendation: Approve
Comm. Dist. 1,2

COMMISSIONER COX MOVED APPROVAL OF STAFF'S RECOMMENDATION; COMMISSIONER HILDEBRAND SECONDED; MOTION CARRIED.

R5 Resolution of Necessity-Project C3623.00-S.R. 52 from East of I-75 to East of Emmaus Cemetery Road
Memorandum CAO08-1620
Recommendation: Approve
Comm. Dist. 1

COMMISSIONER COX AND COMMISSIONER MARIANO MOVED APPROVAL OF STAFF'S RECOMMENDATION; COMMISSIONER HILDEBRAND SECONDED; MOTION CARRIED.

R6 Flood Ordinance-Federal Emergency Management Agency-Enforcement Cases
Memorandum CAO08-2803
Recommendation: Approve
Comm. Dist. All

COMMISSIONER HILDEBRAND MOVED APPROVAL OF STAFF'S RECOMMENDATION; COMMISSIONER MULIERI SECONDED; MOTION CARRIED.

DEVELOPMENT SERVICES BRANCH

DEVELOPMENT REVIEW SERVICES

R7 Appeal to the Order to Demolish-Dorothy Pizza-5838 S.R. 54, New Port Richey, Florida (Continued from August 21, 2007)
Memorandum DV08-023
Recommendation: Approve
Comm. Dist. 3

COMMISSIONER HILDEBRAND MOVED APPROVAL OF STAFF'S RECOMMENDATION; COMMISSIONER MULIERI AND COMMISSIONER MARIANO SECONDED.

COMMISSIONER HILDEBRAND MOVED TO RECEIVE AND FILE DOCUMENTATION PRESENTED BY MS. SHELLEY JOHNSON; COMMISSIONER MULIERI SECONDED; MOTION CARRIED.

COMMISSIONER HILDEBRAND MOVED APPROVAL OF STAFF'S RECOMMENDATION AND TO INCLUDE AMENDED LANGUAGE TO THE CONDITION 2 AND 3 AS READ INTO THE RECORD BY MS. SHELLEY JOHNSON; COMMISSIONER MARIANO SECONDED; MOTION CARRIED.

R8 Revoking Prior Stay of Demolition for Failure to Meet Deadlines for Repairs-Luis Ramon and Zaida Perez-3015 Rock Valley Drive, Holiday, Florida (Continued from October 23, 2007)
Memorandum dv08-029
Recommendation: Approve
Comm. Dist. 3

COMMISSIONER HILDEBRAND MOVED APPROVAL OF STAFF'S RECOMMENDATION WHICH WAS TO DEMOLISH THE BUILDING AND TO INCLUDE MR. SUMNER'S COMMENTS; COMMISSIONER MULIERI AND COMMISSIONER COX SECONDED; MOTION CARRIED.

ENGINEERING SERVICES

R9 Beacon Woods Sidewalk Construction-Public Works-Beacon Woods Subdivision
Memorandum ENA08-003
Recommendation: Approve
Comm. Dist. 5

COMMISSIONER MARIANO MOVED APPROVAL OF STAFF'S RECOMMENDATION; COMMISSIONER HILDEBRAND AND COMMISSIONER COX SECONDED; MOTION CARRIED.

ENGINEERING SERVICES - TRAFFIC OPERATIONS

R10 Road Closure and Detour-Clark Hunt-Dunstable Drive, Condord Station Subdivision
Memorandum tr08-0298
Recommendation: Approve
Comm. Dist. 2

COMMISSIONER MULIERI MOVED APPROVAL OF STAFF'S RECOMMENDATION; COMMISSIONER HILDEBRAND AND COMMISSIONER COX SECONDED; MOTION CARRIED.

GROWTH MANAGEMENT

R11 LPA WORK SESSION CPAD258 Epperson Ranch DRI Comprehensive Plan Amendment - Adoption Phase-LPA-Review FDCA ORC Report and Response/NPR/ Preparation of BCC for Adoption
Memorandum GM08-54
Recommendation: Approve
Comm. Dist. All

MS. KATHRYN STARKEY, SCHOOL BOARD MEMBER, WAS PRESENT.

NO ACTION TAKEN. FOR INFORMATION ONLY.

ZONING/CODE COMPLIANCE

R12 Waiver of Specific Distance Requirement for Conditional Use Consideration-Applicant: Jasmine Lakes Development Corporation/Jasmine Discount Beverage-Waiver of the Specific Distance Limitation of 1,000 Feet from a Church for Conditional Use Consideration for the Sale and Consumption of Alcoholic Beverages
Memorandum ZN08-154
Recommendation: Approve
Comm. Dist. 5

COMMISSIONER COX MOVED APPROVAL OF STAFF'S RECOMMENDATION TO MOVE THE ITEM TO A PUBLIC HEARING; COMMISSIONER MULIERI SECONDED; MOTION CARRIED.

PUBLIC SERVICES BRANCH

COMMUNITY SERVICES - PUBLIC TRANSPORTATION

R13 Paratransit Service-Pasco County Public Transportation-Options for Board Consideration
Memorandum PT08-043
Recommendation: Approve
Comm. Dist. All

COMMISSIONER COX MOVED APPROVAL OF STAFF'S RECOMMENDATION OF OPTION NUMBERS ONE AND TWO; COMMISSIONER MARIANO SECONDED.

COMMISSIONER COX AMENDED HIS MOTION TO INCLUDE APPROVAL OF OPTIONS ONE AND TWO; ON OPTION THREE TO DIRECT STAFF TO MEET WITH THE OUTSIDE AGENCIES, TO BRING INFORMATION BACK BEFORE THE BOARD REGARDING THE TYPES OF TRIPS THE AGENCIES WERE PROVIDING, WHAT WAS THE NATURE OF THE TRIPS, AND IF THEY WOULD BE INTERESTED IN EXPANDING THEIR SERVICES OUTSIDE OF THEIR CURRENT CLIENTELE; COMMISSIONER MARIANO SECONDED THE AMENDMENT; MOTION CARRIED WITH COMMISSIONER MULIERI VOTING NAY.

R14 Medicaid Transportation Contract-Commission for the Transportation Disadvantaged-Continuation of Service
Memorandum PT08-044
Recommendation: Approve
Comm. Dist. All

COMMISSIONER HILDEBRAND MOVED APPROVAL OF STAFF'S RECOMMENDATION; COMMISSIONER COX SECONDED; MOTION CARRIED.

UTILITIES SERVICES BRANCH

UTILITIES CONSTRUCTION AND CONTRACT MANAGEMENT

R15 Land O' Lakes Reclaimed Water Storage Reservoir Project-Kimmins/Qore-Additional Testing, Engineering, and Construction Work (Continued from November 6, 2007)
Memorandum UTD08-173
Recommendation: Approve
Comm. Dist. 2

COMMISSIONER COX MOVED TO CONTINUE TO THE NEXT MEETING; COMMISSIONER MARIANO SECONDED; MOTION CARRIED.

Letter Agreement Mills, Paskert, & Divers, P.A.
Representation regarding Land O'Lakes Reservoir
All Commission Districts

THE ITEM WAS DISTRIBUTED AT THE MEETING.

MR. SUMNER EXPLAINED THE ITEM. HE REQUESTED APPROVAL TO RETAIN THE LAW FIRM OF MILLS, PASKERT, & DIVERS, P.A. IN ORDER TO REPRESENT THE COUNTY WITH REGARD TO THE LAND O'LAKES RESERVOIR AT A COST NOT TO EXCEED $35,000 WITHOUT FURTHER BOARD APPROVAL AND TO AUTHORIZE THE COUNTY ATTORNEY TO EXECUTE THE LETTER AGREEMENT.

COMMISSIONER COX MOVED APPROVAL OF STAFF'S RECOMMENDATION; COMMISSIONER MARIANO SECONDED; MOTION CARRIED.

OFFICE OF MANAGEMENT AND BUDGET

OFFICE OF MANAGMENT AND BUDGET

R16 United Way Funding Allocation-to Distribute FY 07-08 Funds to Outside Agencies-$386,955.00
Memorandum OMB08-8010R
Recommendation: Approve
Comm. Dist. All

COMMISSIONER HILDEBRAND MOVED APPROVAL OF STAFF'S RECOMMENDATION INCLUDING THE ALLOCATION OF THE $5,000.00; COMMISSIONER COX SECONDED; MOTION CARRIED.

R17 Additional Funding for Sheriff's Grant-Edward Byrne Memorial Justice Assistance Grant-Grant - $50,000
Memorandum OMB08-8056
Recommendation: Approve
Comm. Dist. All

COMMISSIONER HILDEBRAND AND COMMISSIONER MARIANO MOVED APPROVAL OF STAFF'S RECOMMENDATION; COMMISSIONER MULIERI SECONDED; MOTION CARRIED.

NOTED ITEMS
AGENDAS/MINUTES

AGENDA ITEMS R 18 THROUGH R 33 WERE NOTED.

R18 Minutes-Pasco Economic Development Council-Meeting of August 22, 2007.
Memorandum NI08-106
Recommendation: Receive and File
Comm. Dist. All

R19 Minutes-Heritage Springs Community Development District-Meetings of May 21, 2007, and July 23, 2007.
Memorandum NI08-107
Recommendation: Receive and File
Comm. Dist. All

R20 Minutes-Lake Bernadette Community Development District-July 17, 2007, Meeting.
Memorandum NI08-112
Recommendation: Receive and File
Comm. Dist. All

R21 Agenda-District School Board of Pasco County-November 6, 2007, Meeting.
Memorandum NI08-114
Recommendation: Receive and File
Comm. Dist. All

R22 Annotated Agenda-Board of County Commissioners Regular Meeting/Rezonings-November 6, 2007, Meeting.
Memorandum NI08-119
Recommendation: Receive and File
Comm. Dist. All

MISCELLANEOUS

R23 Results of the EMS Inspection for the Emergency Services Department-State of Florida, Dept. of Health, Emergency Medical Services -Inspection of Advanced Life Support Services to Ensure Compliance with the State of Florida.
Memorandum ES08-1015
Recommendation: Receive and File
Comm. Dist. All

R24 Regional Hurricane Shelter Third Quarter Grant Reporting for September 30, 2007-State of Florida, Division of Emergency Management-Required State Grant Reporting
Memorandum FAC08-032
Recommendation: Receive and File
Comm. Dist. All

COMMISSIONER MARIANO ASKED STAFF FOR AN UPDATE.

MR. DAN JOHNSON UPDATED THE BOARD REGARDING THE INCREASED COST AND THE ADDITIONAL REQUIREMENTS REGARDING TORNADOS.

R25 Letter from Bright House Networks-Dated October 18, 2007-RE: Channel Realignment Plan.
Memorandum NI08-108
Recommendation: Receive and File
Comm. Dist. All

R26 Notice from Southwest Florida Water Management District-Dated October 18, 2007-RE: Second Extension of Water Shortage Order No. 07-02.
Memorandum NI08-109
Recommendation: Receive and File
Comm. Dist. All

R27 Letter from Charles H. Bronson, Commissioner of Agriculture, Florida Division of Forestry-Dated October 12, 2007-RE: Cooperative Forestry Assistance Program and Fire Protection Program 2006-07 Annual Report.
Memorandum NI08-110
Recommendation: Receive and File
Comm. Dist. All

R28 Letter from Kurt S. Browning, Secretary of State-Dated October 24, 2007-RE: Response to Florida Voters Coalition Letter.
Memorandum NI08-111
Recommendation: Receive and File
Comm. Dist. All

R29 Rule Development Workshop-Southwest Florida Water Management District-November 20, 2007.
Memorandum NI08-113
Recommendation: Receive and File
Comm. Dist. All

R30 Letter from Mike Olson, Tax Collector-Dated October 30, 2007-RE: Annual Report for the Year Ending September 30, 2007, and Excess Fees for Fiscal Year 2006-07.
Memorandum NI08-115
Recommendation: Receive and File
Comm. Dist. All

R31 Letter from the Clerk of the Circuit Court to the District School Board of Pasco County-Dated October 30, 2007-RE: School Impact Fees, Monthly Report, Balance as of September 30, 2007.
Memorandum NI08-116
Recommendation: Receive and File
Comm. Dist. All

R32 Florida Yards & Neighborhoods-Annual Report-July 1, 2007, to September 30, 2007.
Memorandum NI08-117
Recommendation: Receive and File
Comm. Dist. All

R33 Noted on File in Board Records-Items can be Reviewed in the Office of Jed Pittman, Clerk of the Circuit Court-East Pasco Government Center, Board Records Department, Suite 201, 14236 - 6th Street, Dade City, Florida. Memorandum NI08-118
Recommendation: Receive and File
Comm. Dist. All

a. Warranty Deed Individual – Ava B. Rossler, as Trustee of the Robert C.Hedrick, Jr. Trust Agreement - Dated October 26, 2007 – OR Book 7672 Pages 1715 - 1719

b. Warranty Deed Individual – Mike Lenas – Dated October 26, 2007 - OR Book 7672 Pages 1632 - 1635

c. Warranty Deed Individual – Steven L. Schatzer – Dated October 25, 2007 - OR Book 7671 Pages 1736 - 1739

d. Warranty Deed – District Board of Trustees Pasco-Hernando Community College – Dated October 31, 2007 - OR Book 7676 Pages 1539 – 1542

e. Warranty Deed Corporation – NG Development Corporation – Dated July 21, 2006 – OR Book 7678 Pages 720 – 730

f. Warranty Deed Corporation – NG Development Corporation – Dated July 21, 2006 – OR Book 7678 Pages 731 – 735

g. Slope Easement Corporation – NG Development Corporation – Dated July 21, 2006 – OR Book 7678 Pages 752 – 762

h. Permanent Slope Easement – The District Board of Trustees Pasco-Hernando Community College – Dated October 31, 2007 – OR Book 7676 Pages 1547 - 1550

i. Temporary Construction Easement – The District Board of Trustees Pasco-Hernando Community College – Dated October 31, 2007 – OR Book 7676 Pages 1551 – 1564

j. Temporary Easement For Right-of-Way Corporation – River Ridge Golf Club, Inc. – Dated July 21, 2006 – OR Book 7678 Pages 744 – 751

k. Permanent Drainage Easement – The District Board of Trustees Pasco-Hernando Community College – Dated October 31, 2007 – OR Book 7676 Pages 1543 - 1546

l. Drainage Easement Corporation – NG Development Corporation – Dated July 21, 2006 – OR Book 7678 Pages 742 - 743

m. Drainage Easement Corporation – River Ridge Golf Club, Inc. – Dated July 21, 2006 – OR Book 7678 Pages 736 - 741

n. Quit Claim Deed – Antoinette Rynicke – Dated October 22, 2007 – OR Book 7681 Page 181

o. Quit Claim Deed – USA Real Estate Profit Funds III L.P. – Dated August 30, 2004 – OR Book 7678 Pages 1762 - 1764

p. Escheatment Tax Deed – Dated October 26, 2007 – Tax Deed File Number 200000237 – Property ID #26-26-18-0000-00200-00A0

q. Escheatment Tax Deed – Dated October 26, 2007 – Tax Deed File Number 200000238 – Property ID #19-24-17-0010-00000-0030

r. Escheatment Tax Deed – Dated October 26, 2007 – Tax Deed File Number 200000239 – Property ID #19-24-17-0010-00000-0060

s. Escheatment Tax Deed – Dated October 26, 2007 – Tax Deed File Number 200000240 – Property ID #17-26-16-0000-03900-0080

t. Escheatment Tax Deed – Dated October 26, 2007 – Tax Deed File Number 200000270 – Property ID #04-25-21-0020-00000-0240

u. Escheatment Tax Deed – Dated October 26, 2007 – Tax Deed File Number 200000286 – Property ID #01-24-16-0080-00000-00B0

v. Escheatment Tax Deed – Dated October 26, 2007 – Tax Deed File Number 200000288 – Property ID #36-25-16-002C-00000-1312

w. Escheatment Tax Deed – Dated October 26, 2007 – Tax Deed File Number 200000289 – Property ID #04-25-18-0000=00800-0020

x. Escheatment Tax Deed – Dated October 26, 2007 – Tax Deed File Number 200000295 – Property ID #01-26-21-0010-02300-0220

y. Escheatment Tax Deed – Dated October 26, 2007 – Tax Deed File Number 200000296 – Property ID #28-25-16-0990-00000-9991

z. Escheatment Tax Deed – Dated October 26, 2007 – Tax Deed File Number 200000297 – Property ID #15-26-18-0000-00400-0151

aa. Escheatment Tax Deed – Dated October 26, 2007 – Tax Deed File Number 200000306 – Property ID #03-25-16-0000-00100-0040

bb. Escheatment Tax Deed – Dated October 26, 2007 – Tax Deed File Number 200000308 – Property ID #24-26-15-0850-00001-742A

cc. Escheatment Tax Deed – Dated October 26, 2007 – Tax Deed File Number 200000313 – Property ID #19-24-17-0010-00000-00A0

dd. Escheatment Tax Deed – Dated October 26, 2007 – Tax Deed File Number 200000314 – Property ID #19-24-17-0010-00000-0071

ee. Escheatment Tax Deed – Dated October 26, 2007 – Tax Deed File Number 200000315 – Property ID #19-24-17-0010-00000-0086

ff. Escheatment Tax Deed – Dated October 26, 2007 – Tax Deed File Number 200000317 – Property ID #10-26-16-0030-05700-0031

gg. Order – Variance Application No. 1937 – Helen and Nathaniel Crawford, Jr. - Development Review Committee approved September 13,2007

hh. Order – Variance Application No. 1939 – Lee R. And Linda S. Campbell – Development Review Committee approved September 27, 2007

ii. Order – Variance Application No. 1940 –Joaquin R. and Mirian N. Jaime – Development Review Committee approved September 27, 2007

jj. Order – Variance Application No. 1941 – Beazer Homes Corporation – Development Review Committee approved September 27, 2007

kk. Order – Variance Application No. 1942 – Jeffery and Roxanne Steele – Development Review Committee approved September 27, 2007

ll. Order to Deny – Variance Application No. 1943 – Kenneth Ruddock and Robin Powell – Development Review Committee approved September 27, 2007

mm. Order – Special Exception Application No. 6724 – Byron Dell and Carla Elen Jones – Planning Commission approved September 12, 2007

nn. Order – Special Exception Application No. 6725 – Robert and Jacqueline Bergman – Planning Commission approved September 12, 2007

oo. Rezoning Resolution No. 07-50RZ, Rezoning Application No. 6664 – Board of County Commissioners approved September 25, 2007

pp. Rezoning Resolution No. 07-51RZ, Rezoning Application No. 6677 – Board of County Commissioners approved September 25, 2007

qq. Rezoning Resolution No. 07-52RZ, Rezoning Application No. 6710 – Board of County Commissioners approved September 25, 2007

rr. Rezoning Resolution No. 07-53RZ, Rezoning Application No. 6718 – Board of County Commissioners approved September 25, 2007

ss. Rezoning Resolution No. 07-54RZ, Rezoning Application No. 6719 – Board of County Commissioners approved September 25, 2007

tt. Rezoning Resolution No. 07-55RZ, Rezoning Application No. 6720 – Board of County Commissioners approved September 25, 2007

uu. Letter from Southwest Florida Water Management District – Dated October 8, 2007 – Five-Year Water Resource Development Work Program

vv. Notice to Proceed – CEM Enterprises, Inc. – Various Construction Projects III (Bridge Repairs) – Bid No 07-172 – Dated 11/06/07

ww. Letter from City of Dade City – Dated October 24, 2007 – RE: Ordinance 2007-0965 and Ordinance 2007-0966

xx. Minutes and Meeting Documentation – Pasco County Public Safety Coordinating Council Meeting of September 7, 2007

yy. Minutes and Meeting Documentation – Citizens' Ordinance Review Committee (CORC) Meeting of October 15, 2007

zz. Minutes - Construction/Licensing Board of Adjustments and Appeals Meeting of July 25, 2007

aaa. Minutes – Construction Code Enforcement Board Meeting of July 25, 2007

bbb. Minutes and Meeting Documentation – Construction Code Enforcement Board Meeting of August 15, 2007

ccc. Minutes and Meeting Documentation – Pasco County Construction Board Meeting of October 17, 2007

ddd. Minutes and Meeting Documentation – Planning Commission Meeting of September 12, 2007

eee. Committee.Minutes and Meeting Documentation – Development Review Committee Meeting of May 24, 2007

PUBLIC HEARINGS

PUBLIC HEARINGS AT 1.30 PM
PUBLIC HEARINGS

P1 Appeal of Central Permitting Manager's Denial of Permit Application No. 81474 -Walter and Marzena Orkisz-2030 Gulfview Drive, Holiday (Continued from August 21, 2007, and October 23, 2007)
Memorandum DV08-034
Recommendation: Other
Comm. Dist. 3

STAFF WITHDREW THE ITEM.

P2 Cannon Ranch DRI/Development Agreement Amendment-New Cities Land Company, Inc.; Bates Properties, LLC; Cannon Ranch, LLC; Bella Verde East CDD; Bella Verde Lake CDD; and Bella Verde Golf CDD-Continued from June 5, 2007, August 7, 2007, and September 25, 2007
Memorandum GM08-067
Recommendation: Approve
Comm. Dist. 1

COMMISSIONER COX MOVED TO CONTINUE TO FEBRUARY 12, 2008, 1:30 P.M., DADE CITY; COMMISSIONER MULIERI AND COMMISSIONER HILDEBRAND SECONDED; MOTION CARRIED.

P3 Application for Develoment Approval of a Development of Regional Impact-The Shailendra Group, LLC-Pasco Town Centre DRI (Continued from September 25, 2007; To Be Continued to February 12, 2008)
Memorandum GM08-84
Recommendation: Approve
Comm. Dist. 1

COMMISSIONER MULIERI MOVED TO CONTINUE TO FEBRUARY 12, 2008, 1:30 P.M., DADE CITY; COMMISSIONER HILDEBRAND SECONDED; MOTION CARRIED.

P4 Future Land Use Map Amendment-The Shailendra Group, LLC-Pasco Town Centre Development of Regional Impact (Continued from September 25, 2007; To Be Continued to February 12, 2008)
Memorandum Gm08-85
Recommendation: Approve
Comm. Dist. 1

COMMISSIONER HILDEBRAND MOVED TO CONTINUE TO FEBRUARY 12, 2008, 1:30 P.M., DADE CITY; COMMISSIONER MULIERI SECONDED; MOTION CARRIED.

P5 Canal Street, PVAS No. 881 Public Hearing-Petition by Residents-Resurfacing of Canal Street
Memorandum pma08-046
Recommendation: Approve
Comm. Dist. 5

COMMISSIONER MARIANO MOVED TO CONTINUE TO JANUARY 22, 2008, 1:30 P.M., NEW PORT RICHEY; COMMISSIONER MULIERI AND COMMISSIONER HILDEBRAND SECONDED; MOTION CARRIED.

REZONINGS

MS. DILLON NOTED PROOF OF PUBLICATION.

MR. SUMNER READ THE PROCEDURES THAT WOULD BE FOLLOWED.

COMMISSIONER HILDEBRAND MOVED APPROVAL OF THE CONSENT AGENDA; COMMISSIONER MULIERI SECONDED; MOTION CARRIED.

P6 Zoning Petition-The Charles H. and Karen J. Duncan Family Trust-The Charles H. and Karen J. Duncan Family Trust, A-C to A-R, BCC Meeting, 11/27/07, NPR, 1:30 p.m.
Memorandum ZN08-6733
Recommendation: Approval with Conditions
Comm. Dist. 2

APPROVED AS PART OF THE CONSENT AGENDA.

P7 Zoning Petition-Villas by the Lake II, LLC-C-2 to MF-2, BCC Meeting, 11/27/07, NPR, 1:30 p.m.
Memorandum ZN08-6735
Recommendation: Approval with conditions
Comm. Dist. 4

APPROVED AS PART OF THE CONSENT AGENDA.

P8 Zoning Petition-Andreyev Land Group, LLC-A-C to AR-1, BCC Meeting, 11/27/07 New Port Richey,1:30 p.m.
Memorandum ZN08-6696
Recommendation: Approve
Comm. Dist. 5

COMMISSIONER MARIANO MOVED TO CONTINUE TO FEBRUARY 26, 2008, 1:30 P.M., NEW PORT RICHEY; COMMISSIONER COX SECONDED; MOTION CARRIED.

PUBLIC COMMENTS

P9

MR. STEVE BYLE SPOKE REGARDING VESTED RIGHTS AND GULF LANDINGS.

COMMISSIONER HILDEBRAND MOVED TO RECEIVE AND FILE DOCUMENTATION PRESENTED BY MR. STEVE BYLE; COMMISSIONER MULIERI SECONDED; MOTION CARRIED.

MR. CHARLES MUELLER SPOKE REGARDING A STREET IN HIS AREA CALLED JAYAIRE THAT NEEDED REPAIR. THE BOARD DIRECTED ROAD AND BRIDGE TO LOOK INTO IT.

MS. HELEN KELLY SPOKE REGARDING VESTED RIGHTS AND GULF LANDINGS.

COMMISSIONER HILDEBRAND ASKED MR. SUMNER FOR HIS OPINION REGARDING THE COMMENTS MADE BY MR. BYLE AND MS. KELLY.

MR. SUMNER COMMENTED THAT THE TAXPAYERS HAD A RIGHT TO GO TO COURT, IN ORDER TO DETERMINE IF ANY DOCUMENTS WERE MISSING.

ADJOURN

P10

THE BOARD ADJOURNED AT 3:53 P.M.

Prepared by:cms